

22STCV12527 22STCV12527

County: los-angeles

Division: Civil Law and Motion

Department: 516

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Case Number: 22STCV12527 Hearing Date: July 27, 2026 Dept: 516

Hearing Date: July 27, 2026

Case Name: Gerry Burk, Trustee of the
5721 Trust, et al. v. Triple Images, LLC, et al.

Case

No.: 22STCV12527

Matter: Motion for Leave to Allow Plaintiff Gerry Burk to
Represent 5721 Trust

Moving

Party: Plaintiff Gerry Burk

Responding Party: None

Tentative Ruling: The
hearing on Plaintiff Gerry Burk's motion for leave is continued until

August
26, 2026.

Plaintiff

Gerry Burk, as individual and trustee for 5721 Trust ("Plaintiffs"), filed this action against Defendants Triple Images, LLC also known as Triple Image Cosmetic, LLC, Bezaad Kahoolyzaadeh also known as Bezaad Cohen Aka David Cohen, Tessfaye Kinfé, also known as Tess Kinfé, Michael Goland, all persons unknown, claiming any legal or equitable right, title, estate, or interest in the

property adverse to plaintiff's interest, or any cloud on Plaintiff's title to that property and Does 1-100.

Plaintiff

Gerry Burk, in his individual capacity, moves for leave to file a First Amended Complaint ("FAC"). No opposition was filed.

Legal Standard

The court

may, in furtherance of justice, allow a party to amend any pleading upon any terms as may be proper. (Code Civ. Proc., §§ 473, subd. (a), 576.) Courts liberally grant leave to amend based on a strong policy favoring the resolution of all disputes between parties in the same case. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) Thus, requests for leave to amend will generally be granted unless the party seeking to amend has been dilatory in bringing the proposed amendment, and the delay will cause prejudice to the opposing party if leave to amend is granted. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490; see also *Armenta ex rel. City of Burbank* (2006) 142 Cal.App.4th 636, 642 ["instances justifying the court's denial of leave to amend are rare."].) Absent prejudice, delay alone is insufficient to deny leave to amend. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.)

A party

requesting leave to amend must state what allegations in the previous pleading are proposed to be deleted and added, as well as specify where, by page, paragraph, and line number, the changes are located. (Cal. Rules of Court, rule 3.1324(a)(1)-(3).) The moving party must also attach the proposed amended pleading with a declaration by counsel, describing (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request was not made earlier. (Cal. Rules of Court, rule 3.1324(b)(1)-(4).)

Analysis

Improper
Service

Code

of Civil Procedure section 1005, subdivision (b) states that moving papers "shall be served and filed at least 16 court days before the hearing." (Code Civ. Proc., § 1005, subd. (b).)

Plaintiff

Gerry Burk filed his motion on July 6, 2026. In accordance with Code of Civil Procedure section 1005, subdivision (b), Plaintiff was required to file and serve his motion by July 2, 2026. No opposition was filed by any Defendant; thus, it is also likely that the motion was not timely served on Defendants.

Thus,

Plaintiff Gerry Burk 's motion is improperly served.

Plaintiff Gerry

Burk 's motion will be continued to allow Plaintiff to properly serve his motion on Defendants according to the rules of California Civil Procedure.

Conclusion

Plaintiff

Gerry Burk's motion for leave to file an amended Complaint is continued until August 26, 2026.